

## 24NWCV01909 24NWCV01909

County: los-angeles

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Case Number: 24NWCV01909 Hearing Date: July 14, 2026 Dept: SED

ADRIENNE BERKE V. CITY OF  
DOWNEY, ET AL.

CASE NO.: 24NWCV01909

HEARING: 07/15/2026 @ 9:30 a.m.

#6

TENTATIVE ORDER

Defendant City of Downey's  
demurrer is OVERRULED IN PART and SUSTAINED IN PART.

Plaintiff Adrienne Berke shall  
file and serve an amended complaint within 60 days of this ruling.

Moving party to give notice.

Defendant City of Downey (City) demurs  
as to the Second Amended Complaint (SAC) of Plaintiff Adrienne Berke  
(Plaintiff).

Background

On May 12, 2026, Plaintiff filed  
the operative SAC against Defendants City, Discovery Sports Complex, the PB Guy  
Inc., and Does 2 to 50, inclusive, asserting five causes of action: (1)

Dangerous Condition of Public Property; (2) Negligence—Vicarious Liability for Employees; (3) Violation of Mandatory Duty Under Government Code Section 815.6; (4) Negligence; and (5) Premises Liability.

On June 16, 2026, City filed the instant demurrer.

On July 1, 2026, Plaintiff filed an opposition.

On July 8, 2026, City filed a reply.

#### Legal Standard

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. *z* (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Plaintiff is only required to

allege ultimate facts, not evidentiary facts.

(See *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212 ["the complaint should set forth the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts"]; 1 Cal. Affirmative Def. § 10:2 (2d ed.) [allegations of agency, course and scope of employment, etc. qualify as ultimate facts].) Plaintiff's allegations must be accepted as true on demurrer. (See *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924 ["For purposes of reviewing a demurrer, we accept the truth of material facts properly pleaded in the operative complaint"].)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) requires the moving party to meet and confer "in person, by video conference, or by telephone" in an attempt to resolve a demurrer's deficiencies five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).)

The Court finds that the City has fulfilled the meet and confer requirement. (Forsyth Decl., ¶ 8.)

Analysis

City demurs to the first, second, and third causes of action asserted against it. The City argues that Plaintiff's SAC does not state facts sufficient to constitute a cause of action against the City.

First

Cause of Action - Dangerous Condition of Public Property

i.

Plaintiff Adequately Alleges Dangerous Condition of Public Property

"A public entity is liable for injury caused by a dangerous condition of its property if (1) the property was in a dangerous condition at the time of the injury; (2) the dangerous condition proximately caused the injury; (3) the dangerous condition created a reasonably

foreseeable risk of the kind of injury which was incurred; and (4) (a) a negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the condition or (b) the public entity had actual or constructive notice of the dangerous condition in time to have taken measures to protect against it.

(Zuniga v. Housing Authority (1995) 41 Cal.App.4th 82, 92–93.)

If the risk of injury from third parties is in no way increased or intensified by any condition of the public property, the Court must decline to ascribe the resulting injury to a dangerous condition of the property. (Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1137 (Zelig).) There is no liability for injuries caused solely by the acts of third parties. (Ibid.) Such liability can only arise when third party conduct is coupled with a defective condition of property. (Ibid.)

Here, the Plaintiff alleges the “PREMISES were in a dangerous condition at the time of the injury because Defendant CITY’s permitted use integrated a freestanding, tall photo backdrop immediately adjacent to invitee pathways, and where patrons could sit, thereby creating a physical configuration that exposed seated and nearby patrons to falling-pole and strike hazards.” (SAC ¶ 25.) The phot backdrop was owned and operated by Defendant PB GUY (PB Guy). (Id. at ¶ 10.)

Plaintiff further alleges that the City’s configuration of the event, including the placement of the vendor/photo area, adjacent seating, and event layout, created a dangerous physical condition of the Premises by exposing attendees to the risk of falling backdrop components. (SAC, ¶ 12.) Plaintiff contends that this configuration “created a physical condition of the PREMISES that exposed invitees seated immediately adjacent to the backdrop to falling components and strike hazards, rendering the property itself dangerous for its intended and known uses.” (Id. at ¶ 25.)

The City argues that Plaintiff’s harm created by the photo backdrop is not alleged to have been related to any physical defect or feature of the public property itself. (Demurrer p. 12.) Although the malfunction occurred on the City’s public property, the City contends, PB Guy’s backdrop did not become

part of City property because it was placed there. (Ibid.)

Indeed, to plead a dangerous condition existed, Plaintiff must establish a physical deficiency in the property itself. (Cerna v. City of Oakland (2008) 161 Cal.4th 1430, 1347-1348.)

However, in opposition, Plaintiff argues the “City-selected seating placement, immediately adjacent to the unsecured backdrop within the City’s designated vendor/photo area, is exactly such a physical characteristic.” (Opp., p. 5.) Plaintiff cites Bonanno v. Central Contra Costa Transit Authority (2003) 30 Cal.4th 139 (Bonnano) to argue that California courts have recognized that a public entity’s own placement and design decisions can render property dangerous because of its relationship to a foreseeable hazard. (Id. at p. 4.)

In Bonanno, supra, 30 Cal.4th 139, the plaintiff was struck by a vehicle while crossing a busy street to reach a public bus stop. The plaintiff alleged that the transit authority maintained the bus stop in a dangerous location because bus patrons were required to cross an uncontrolled intersection despite the availability of a safer nearby location. (Id. at 144.) The California Supreme Court held that a public entity may be liable under Government Code section 835 where the physical location of its property exposes users to hazards on adjacent property. (Id. at 154.) The Court explained that public property may constitute a dangerous condition not only when it is physically defective, but also when its location or physical relationship to surrounding hazards increases the risk of injury from third-party conduct. (Id. at 149.) Accordingly, the Supreme Court held that the location of the bus stop could constitute a dangerous condition of public property and reaffirmed that the existence of a dangerous condition ordinarily presents a question of fact for the trier of fact. (Id. at 148, 156.)

Here, as in Bonanno, Plaintiff alleges that the dangerous condition arises not from a structural defect in the City’s property itself, but from the physical configuration and location of public property in relation to an adjacent hazard. Specifically, Plaintiff alleges that the City’s placement of seating immediately adjacent to a freestanding vendor backdrop created a physical condition that increased the risk of injury from

the backdrop. At the pleading stage, those allegations are sufficient to allege a dangerous condition of public property under Government Code section 835.

In its reply, the City argues that Plaintiff still does not assert that the seating was public property or private property, that the City owned the chair in which Plaintiff was seated, nor that a City employee physically handled the chair. (Reply pp. 3-4.)

The Court is not persuaded. Plaintiff's theory is not that liability arises from ownership of the chair itself, but from the City's alleged creation and approval of the physical configuration of the premises, including the placement of seating adjacent to the vendor backdrop as part of the event layout. Plaintiff specifically alleges that the City's designated vendor area, seating placement, and event layout collectively created a dangerous physical condition of the premises.

ii.

Plaintiff Adequately Alleges the Remaining  
Elements of Government Code Section 838

The City argues that the SAC still fails to allege facts showing that the City's property created a substantial and reasonably foreseeable risk of harm as required by Government Code section 830. (Demurrer pp. 14-17.) According to the City, Plaintiff's allegations merely describe the event layout, seating placement, and proximity of the chair to the vendor's backdrop, but do not identify any facts showing that those features were inherently dangerous or created a substantial risk of injury. (Ibid.) The City further contends Plaintiff alleges no prior similar incidents, no complaints regarding PB Guy's backdrop, and no facts showing the City knew or should have known that the backdrop presented a risk of collapsing. (Ibid.) In addition, the City argues that the SAC fails to adequately allege either that a negligent act or omission of a City employee created the alleged dangerous condition or that the City had actual or constructive notice of such condition sufficient to have taken protective measures. (Id. at pp. 16-18.) The City distinguishes Bonanno, arguing that unlike a busy uncontrolled intersection, a freestanding photo backdrop is not an inherently hazardous condition and Plaintiff pleads no facts demonstrating it posed a known or substantial risk of harm. (Reply pp. 4-6.)

Plaintiff responds that the SAC sufficiently alleges a reasonably foreseeable and substantial risk of harm by alleging the City knew from prior years that the event would include numerous vendors using tents, canopies, displays, and freestanding backdrops; expected approximately 600 attendees; and nevertheless placed seating immediately adjacent to a tall, freestanding backdrop without adequate clearance, barriers, or anchoring requirements. (Opp. pp. 5-7, citing SAC ¶¶ 13-14, 20, 25, 28, 29, 33.) Plaintiff further contends the SAC adequately alleges that City employees created the dangerous condition by designing, approving, and implementing the event layout and seating configuration, or alternatively, that the City had actual or constructive notice of the alleged dangerous condition. (Id. at pp. 6-7.)

The Court finds that, at the pleading stage, Plaintiff has sufficiently alleged that the City's purported configuration of the event premises created a reasonably foreseeable and substantial risk of harm and has adequately alleged the remaining elements of Government Code section 835. Plaintiff further alleges that City employees designed, approved, and implemented the challenged event layout and seating configuration, and alternatively alleges that the City had actual or constructive notice of the alleged dangerous condition. Accepting those allegations as true, the Court concludes Plaintiff has sufficiently pleaded the creation and notice elements of section 835. The City's arguments largely challenge whether the alleged configuration in fact created such a risk and whether the evidence ultimately establishes that City employees created, or the City had notice of, the alleged dangerous condition. Those issues present factual questions that are not appropriately resolved on demurrer.

Accordingly, the demurrer to the First Cause of Action is **OVERRULED**.

Second  
Cause of Action: Vicarious Liability for Negligence of Public Employees

A public entity is liable for injury proximately caused by an act or omission of an employee acting within the scope of employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or the employee's

personal representative. (Gov. Code, § 815.2, subd. (a).) Except as otherwise provided by statute, however, a public entity is not liable for an injury resulting from an act or omission of an employee where the employee is immune from liability. (Gov. Code, § 815.2, subd. (b).)

The City argues that the second cause of action remains deficient because Government Code section 835 provides the exclusive basis for imposing liability upon a public entity for injuries arising from an alleged dangerous condition of public property. Accordingly, the City contends Plaintiff cannot maintain a separate claim for vicarious liability under Government Code section 815.2 based on the same underlying conduct. (Demurrer, pp. 18-19; Reply, pp. 7-8.) The City further argues that, notwithstanding the additional allegations in the SAC, Plaintiff fails to plead negligent acts by City employees giving rise to an independent negligence claim. (Demurrer, pp. 19-20.)

Plaintiff responds that the SAC cures the pleading deficiencies identified in the Court's prior ruling by identifying specific City employees, and alleging that, within the scope of their employment, they negligently planned, approved, and implemented the event layout; knew vendors would be present; failed to inquire about vendors or obtain required business licenses and certificates of insurance; failed to inspect vendor tents, canopies, displays, and backdrops; failed to reconfigure seating outside the alleged fall zone; and failed to warn or otherwise guard against the alleged hazard. (Opp., pp. 7-8, citing SAC ¶ 48.) Plaintiff contends these allegations are sufficient to state a claim for vicarious liability under Government Code section 815.2.

Government Code section 815.2 generally imposes vicarious liability on a public entity for the torts of its employees. (Hoff v. Vacaville Unified Sch. Dist. (1998) 19 Cal.4th 925, 932.) However, "[t]he exclusive statutory basis for holding a public entity liable for injuries caused by a dangerous condition of its property is set forth in Government Code section 835." (Zelig, supra, 27 Cal.4th at 1132.) Section 835 provides that a public entity may be liable where the plaintiff establishes that the property was in a dangerous condition at the time of the injury, the dangerous condition proximately caused the injury, the condition created a reasonably foreseeable risk of the kind of



injury incurred, and either a negligent or wrongful act or omission of a public employee created the dangerous condition or the public entity had actual or constructive notice of the condition in sufficient time to have protected against it. (Gov. Code, § 835.)

Here, unlike the FAC, the SAC identifies specific City employees and alleges particular negligent acts and omissions, including planning, approving, and implementing the event layout; failing to inquire about vendors or obtain business licenses and certificates of insurance; failing to inspect vendor structures; failing to reconfigure seating outside the alleged fall zone; and failing to warn of the alleged hazard. (SAC ¶ 48.) Accordingly, Plaintiff has cured the factual pleading deficiency identified in the Court's prior ruling.

Nevertheless, the Court is not persuaded that Plaintiff may maintain a separate cause of action under Government Code section 815.2. Although Plaintiff characterizes the second cause of action as one for vicarious liability, the alleged negligent acts and omissions all arise from the same purported dangerous condition of public property underlying the First Cause of Action. Plaintiff does not allege negligent conduct by City employees independent of the dangerous condition claim itself. Rather, the alleged employee conduct constitutes the very conduct by which Plaintiff contends the dangerous condition was created.

Although section 815.2 generally provides a basis for derivative liability arising from the actionable conduct of public employees, it does not permit Plaintiff to maintain a separate cause of action against the City where the gravamen of the claim is injury caused by a dangerous condition of public property. "With respect to the plaintiffs' cause of action pursuant to section 815.2 . . . public entity liability for property defects is not governed by the general rule of vicarious liability provided in section 815.2, but rather by the provisions in sections 830 to 835.4 of the Government Code." (Longfellow v. County of San Luis Obispo (1983) 144 Cal.App.3d 379, 383.) Likewise, "Section 835 sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property." (Brown v. Poway Unified Sch. Dist. (1993) 4 Cal.4th 820, 829.) Because Plaintiff's alleged employee negligence is not independent of the dangerous

condition theory asserted in the first cause of action, Plaintiff may not maintain a separate cause of action under Government Code section 815.2.

Accordingly, the demurrer to the  
Second Cause of Action is SUSTAINED WITHOUT LEAVE TO AMEND.

Third

Cause of Action: Violation of Mandatory Duty

“Where a public entity is under a  
mandatory duty imposed by an enactment that is designed to protect against the  
risk or a particular kind of injury, the public entity is liable for an injury  
of that kind proximately caused by its failure to discharge the duty unless the  
public entity establishes that it exercised reasonable diligence to discharge  
that duty.” (State Dept. of State  
Hospitals v. Superior Court (2015) 61 Cal.4th 339, 348.) “Thus, the government may be liable when (1) a  
mandatory duty is imposed by enactment, (2) the duty was designed to protect  
against the kind of injury allegedly suffered, and (3) breach of the duty  
proximately caused injury” pursuant to Gov. Code § 815.6. (Ibid.)

“Courts have delineated what is  
necessary to establish a mandatory duty.” (Ibid.) “First and foremost, . . . the enactment at  
issue [must] be obligatory, rather than merely discretionary or permissive, in  
its directions to the public entity; it must require, rather than merely  
authorize or permit, that a particular action be taken or not taken.” (Ibid. [emphasis in original].) “It is not enough, moreover,  
that the public  
entity . . . have been under an obligation to perform a function if the  
function itself involves the exercise of discretion.” (Ibid. [emphasis in original].) A mandatory duty will only exist “if the  
enactment affirmatively imposes the duty and provides implementing guidelines.”  
(Ibid. [internal quotations  
omitted].) “[T]he mandatory nature of  
the duty must be phrased in explicit and forceful language.” (Ibid. [internal quotations omitted,  
citation omitted].) “It is not enough  
that some statute contains mandatory language.” (Ibid.) “Whether an enactment imposes a mandatory  
duty, rather than a mere obligation to perform a discretionary function, is a  
question of statutory interpretation for the courts.” (Id. at 349.)

Here, unlike the FAC, the SAC no  
longer relies on Civil Code section 846 as the statutory basis for liability. Instead, Plaintiff asserts a claim under  
Government Code section 815.6 predicated on California Fire Code section 104.1

and California Building Code sections 1604.8, 1617, and Chapter 31. (SAC ¶¶ 52, 54, 56, 58.) Accordingly, Plaintiff has cured the

deficiency identified in the Court's prior ruling insofar as the SAC identifies a statutory basis for liability.

Nevertheless, the Court is not persuaded that the cited enactments impose the type of mandatory duty contemplated by section 815.6. Rather, the cited Building Code provisions establish structural safety standards applicable to temporary structures and their installation, while Fire Code section 104.1 generally concerns the Fire Code Official's enforcement authority. None of the cited provisions affirmatively imposes upon the City an explicit, obligatory duty to inspect vendor structures, verify code compliance, require anchorage, or otherwise undertake the specific actions Plaintiff alleges were omitted.

Accordingly, Plaintiff has failed to identify an enactment imposing a mandatory duty upon the City within the meaning of Government Code section 815.6. Because Plaintiff has identified a new statutory basis for liability and the Court cannot conclude that amendment would necessarily be futile, leave to amend is appropriate.

Accordingly, the demurrer to the Third Cause of Action is SUSTAINED WITH LEAVE TO AMEND.

Conclusion

Based on the foregoing, Defendant City of Downey's demurrer is OVERRULED IN PART and SUSTAINED IN PART.

The Court OVERRULES Defendant City of Downey's demurrer to Plaintiff Adrienne Berke's first cause of action.

The Court SUSTAINS WITHOUT LEAVE TO AMEND Defendant City of Downey's demurrer to Plaintiff Adrienne Berke's second cause of action.

The Court SUSTAINS WITH LEAVE TO AMEND Defendant City of Downey's demurrer to Plaintiff Adrienne Berke's third cause of action.

Plaintiff Adrienne Berke shall

file and serve an amended complaint within 60 days of this ruling.